TERERAI TINOFIREI MAPENGO
versus
ESTATE LATE SHINGIRAI BOBO (DR 2997/21)
(as represented by the Executrix Litha Tinashe Bobo)
and
THOMAS TAFIREI
and
MASTER OF THE HIGH COURT (N.O.)
and
REGISTRAR OF DEEDS (N.O.)

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 17 February 2026

Opposed Application – Review

E. Matsanura, for the applicant
T. C. Chirinda, for the first respondent
N. Munetsi, for the second respondent

MAMBARA J:

[1] This is an opposed application for a declaratory order in terms of s 14 of the High Court Act [*Chapter 7:06*], with consequential relief directed at securing release of an original title deed and the recording of transfer steps.

[2] While the second Respondent disputes the Applicant's asserted purchase and raises non-joinder and disputes of fact, the second Respondent does not place before the court any review, appeal, or statutory objection/motion that set aside (or even sought to set aside) the executrix's decision to accept the Applicant's claim and reject (or not uphold) the second Respondent's claim; that decision therefore remains extant, and cannot be collaterally undermined through opposition that is, in substance, an indirect challenge to the estate-administration decision.

[3] The application is a proper one for the grant of declaratory relief, and the Applicant has shown a direct and substantial interest in an existing right requiring determination.

Background

[5] The property in issue is stand 834 Chegutu Township held under Deed of Transfer 10317/04. The Applicant asserts that he purchased the property from the late Shingirai Bobo, paid the purchase price in full, but could not obtain transfer during the deceased's lifetime because transfer was delayed by conditions in the title deed requiring satisfaction of municipal/building conditions before transfer.

[6] The Applicant states that upon the death of Shingirai Bobo, the estate was registered under a deceased estate number reflected in the papers as DR 2997/21 (and, in correspondence, also DR 4997/21), and that the executrix accepted the Applicant's claim to the estate in relation to the stand.

[7] The second Respondent claims to have purchased the same stand under a written "deed of cession" dated 13 June 2005, and alleges that the original title deed came into his possession. He further alleges he has paid rates and occupied the property since 2006.

[8] It is common cause on the papers that the executrix accepted the Applicant's claim, and the second Respondent's own opposing affidavit records that this acceptance "is not disputed."

[9] On 5 October 2023, the Master's Office advised the second Respondent's legal practitioners that the nature of the claim arising from an alleged sale during the deceased's lifetime is "supposed to be handled by the executor" in terms of s 47 of the Administration of Estates Act [*Chapter 6:01*], and that if the second Respondent was aggrieved by the executor's decision, he had the right to take legal steps to protect his interest.

[10] The record placed before the court in this application contains no review proceedings, appeal, nor any statutory objection/motion bringing under challenge the executrix's decision (or any Master's direction) in the manner contemplated by the Administration of Estates Act.

Issues for determination

[11] The issues that arise for determination are these:

[12] First, whether the Applicant satisfies the jurisdictional threshold for a declaratory order under s 14 of the High Court Act [*Chapter 7:06*], namely that he is an "interested person" with a direct and substantial interest in an existing future or contingent right requiring determination, and whether this is a proper case for the exercise of the court's discretion.

[13] Second, whether the second Respondent's opposition predicated on disputing the underlying purchase and raising non-joinder/disputes of fact can be entertained where the executrix's decision accepting the Applicant's claim remains extant, unchallenged through

the procedures provided by law for setting aside or varying such estate-administration outcomes.

[14] Third, whether non-joinder of a co-registered owner is necessarily fatal to the application, given the applicable rules and the posture of the dispute in motion proceedings.

Applicable law

[15] Section 14 of the High Court Act [*Chapter 7:06*] provides that:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation…"

[16] The jurisprudence on the grant of a declaratory order emphasises (i) a direct and substantial interest in an existing/future/contingent right, and (ii) a further discretionary enquiry whether it is a proper case for the court to act. In Kamangira v Chitungwiza Municipality HH 739/15, the court (citing the established approach) reiterated that the court will not decide "abstract, academic or hypothetical questions" unrelated to such rights.

[17] In estate administration, the Administration of Estates Act [*Chapter 6:01*] places the handling of claims against a deceased estate within the executor's domain. Section 47 empowers an executor to require a solemn declaration and to refuse to recognise a claim until substantiated, reflecting the executor's statutory role in managing creditor claims and ranking.

[18] The Act further provides a structured mechanism for finality and challenge through administration and distribution accounts, objections, and a High Court motion where a person is aggrieved by the Master's direction. Section 52(8*)* permits an interested person to lodge objections; s 52(9) (i) permits an aggrieved person, within 30 days, to apply by motion to the High Court to set aside the Master's direction; and s 52(10) provides that where no objection is sustained, or where the objector does not apply to the High Court within the prescribed time, the executor proceeds to pay out creditors and heirs.

[19] The High Court has underscored the consequence of failing to use these statutory avenues timeously. In *Songore* v *Gweme & Ors HH 90/08,* the court stated (in substance) that where a party had the opportunity to challenge the liquidation and distribution account in terms of s 52(8) and to seek court redress, failure to act renders later attempts to reverse an approved account nugatory.

[20] Allied to this is the rule-of-law principle that decisions of public authorities (including administrative action) are treated as operative until set aside by a competent process. In *Robin Vela* v *Auditor-General of Zimbabwe N.O. & Anor HH 405/20,* the court, adopting the settled approach referred to administrative action that "remains valid until reviewed and set aside."

[21] On joinder and non-joinder, r 32(11) of the High Court Rules, 2021 provides that:

> "No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party",

and the court may determine issues as they affect the rights and interests of the parties before it.

[22] Finally, where reliance is placed on "ownership" in relation to registered land, the Deeds Registries Act [*Chapter 20:05*] defines "owner" as "the person registered as the owner or holder" of the immovable property.

Analysis and disposition

[23] The Applicant approaches this court for declaratory relief under s 14 of the High Court Act [*Chapter 7:06*]. The subject matter is not hypothetical: it concerns a real dispute over rights to a specifically identified immovable property and the practical inability to proceed to transfer while the original deed is withheld. This plainly discloses a tangible advantage that flows from determination, and thus meets the threshold of an "interested person" and an existing (or, at minimum, enforceable) right requiring determination.

[24] The central pivot of this dispute, on the papers, is that the executrix (performing statutory estate-administration functions) accepted the Applicant's claim; and the second Respondent's papers do not dispute that acceptance as a fact. The second Respondent's opposition is, at bottom, an attempt to re-open the merits of claim-determination (who purchased first; validity of agreements; alleged fraud/misrepresentation; and the consequence of registration/undivided shares) without invoking the procedures that exist for challenging the executor's handling of estate claims and the consequential estate administration steps.

[25] The Master's Office expressly advised the second Respondent that the executor determines claims under s 47, and that if he was aggrieved, he had the right to take legal steps. The second Respondent did not, in this application, produce any order setting aside the executrix's decision, nor any timely motion contemplated by s 52(9) (i) (within 30 days) aimed at upsetting a Master's direction in the account process.

[26] In these circumstances, the executrix's decision remains extant, and it is not open to the second Respondent to defeat the Applicant's declaratory application by a collateral (and procedurally indirect) challenge that effectively invites the court to act as a court of first instance on a claim-determination that the statutory scheme commits initially to the executor, subject to defined mechanisms of objection and motion. The High Court has repeatedly frowned upon attempts to bypass review/appeal channels by re-characterising the dispute, and the principle that such operative decisions stand until set aside accords with rule-of-law reasoning endorsed in local jurisprudence.

[27] The second Respondent's reliance on disputes of fact does not avail him in this particular posture. To the extent that the second Respondent seeks a full forensic inquiry into competing sale agreements, payment, occupation, and the status of a co-owner's share, that is precisely the kind of merits contestation that ought to have been pursued through the appropriate challenge mechanisms to the executor/Master process, or in action proceedings properly framed for that purpose. Moreover, the procedural risk of motion proceedings in the face of foreseeable disputes is well recognised; but here the court is not being asked to determine an academic or abstract contest rather, it is being asked to pronounce on rights in the face of an extant administrative/executive determination within the estate framework, coupled with continued withholding of the original title deed.

[28] The point of non-joinder is similarly not dispositive. Rule 32(11) makes plain that proceedings are not defeated by non-joinder. Further, the second Respondent's own position on the papers is that the property is held in undivided shares reflected on the title deed; yet he has chosen to oppose on the merits without taking practical steps, in this application, to compel joinder or to demonstrate that the matter cannot be determined as between the parties presently before the court. On the papers as they stand, and given the decisive procedural default in failing to challenge the executor's decision, non-joinder is not a bar to disposing of the application.

[29] For completeness: I accept that, under the Deeds Registries Act, "owner" in relation to immovable property ordinarily denotes the person registered as owner or holder, and that registration is the mechanism by which real rights of ownership are perfected. However, the declaratory relief sought here is coupled with a direction enabling the administrative steps towards transfer to occur (including release of title and the Registrar of Deeds recording the Applicant as transferee after compliance). The declaratur is therefore directed at clarifying and enforcing entitlement within the present dispute and facilitating the lawful transfer

process, rather than purporting to effect transfer by judicial fiat absent deeds registry processes.

[30] In the final analysis, this is a proper case for the exercise of the court's discretion under s 14: the Applicant has demonstrated a direct and substantial interest; the dispute is concrete; and the administration-of-estates framework together with the principle that operative administrative determinations are treated as effective until set aside supports granting relief where the opposing party has not taken the steps the law requires to displace the executrix's extant determination.

[31] In the result, it is ordered that:

1. The instant application succeeds.
2. Applicant be is hereby declared the rightful owner of stand 834 Chegutu Township held under Deed of Transfer number 10317/04.
3. Consequent to the declaration of ownership in paragraph 2 above, third Respondent or its legal practitioners of record, *Messrs Wilmott and Bennett*, be and are hereby ordered to release to the Applicant the original title for stand 834 Chegutu Township, being Deed of Transfer Number 10317/04.
4. Fourth respondent be and is hereby directed to record in its books Applicant as the transferee of stand 834 Chegutu Township held under Deed of Transfer number 10317/04, after full compliance with all the requisite processes
5. The second respondent shall pay costs of suit.

MAMBARA J: ……..

Bonongwe & Company, applicant's legal practitioners.

Wilmot & Bennett, second respondent's legal practitioners.